

PERMANENT COURT OF INTERNATIONAL JUSTICE

1937.
November 6th.
General List :
No. 72.

Order made on November 6th, 1937.

JUDICIAL YEAR 1937.

THE BORCHGRAVE CASE

Present : M. GUERRERO, *President* ; Sir CECIL HURST, *Vice-President* ; Count ROSTWOROWSKI, MM. FROMAGEOT, DE BUSTAMANTE, ALTAMIRA, URRUTIA, NEGULESCO, Jhr. VAN EYSINGA, MM. CHENG, HUDSON, DE VISSCHER, *Judges*.

The Permanent Court of International Justice,
composed as above,
after deliberation,

having regard to Article 48 of the Statute of the Court,
having regard to Articles 38 and 62 of the Rules of Court,
makes the following Order :

Having regard to the Special Agreement signed on February 20th, 1937, between the Belgian Government and the Spanish Government, filed with the Registry of the Court on March 5th, 1937, under which these Governments, a controversy having arisen between them in connection with the death of Baron Jacques de Borchgrave, and the Parties having reached agreement to submit the dispute to the decision of the Court, requested the Court to say whether, having regard to the circumstances of fact and of law concerning the case, the responsibility of the Spanish Government is involved ;

Having regard to the Order made on April 1st, 1937, by the President of the Court—as the Court was not sitting—

fixing, in accordance with the proposals of the Parties, the time-limits for the filing of the documents of the written proceedings;

Having regard to the preliminary objections lodged on June 29th, 1937, by the Spanish Government;

Whereas, in consequence of the judgment rendered this day in regard to the aforesaid objections, and in conformity with the terms of Article 62, paragraph 5, of the Rules, time-limits must once more be fixed for the further proceedings,

The Court

fixes as follows the time-limits for the filing of the subsequent documents of the written proceedings on the merits:

for the Counter-Memorial of the Spanish Government, Tuesday, December 21st, 1937;

for the Reply of the Belgian Government, Friday, February 4th, 1938;

for the Rejoinder of the Spanish Government, Monday, March 21st, 1938.

Done at the Peace Palace, The Hague, this sixth day of November, one thousand nine hundred and thirty-seven, in three copies, one of which shall be placed in the archives of the Court and the others shall be transmitted to the Government of the Kingdom of Belgium and to the Government of the Spanish Republic, respectively.

(Signed) J. G. GUERRERO,
President.

(Signed) J. LÓPEZ OLIVÁN,
Registrar.